

1 HOUSE JOINT RESOLUTION NO. 44

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6 A JOINT RESOLUTION OF THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE STATE OF
7 MONTANA REQUESTING AN INTERIM STUDY OF ENDOCRINE-DISRUPTING CHEMICALS,
8 PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES, AND WATER QUALITY; AND REQUIRING
9 THAT THE FINAL RESULTS OF THE STUDY BE REPORTED TO THE 70TH LEGISLATURE.

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11 WHEREAS, human reproduction is declining around the world, affecting men, women, and children;
12 and

13 WHEREAS, the decline in reproduction is attributed to unhealthy lifestyles and chemicals in the
14 environment; and

15 WHEREAS, endocrine-disrupting chemicals, such as phthalates, bisphenol A, flame-retardants, and
16 pesticides, interfere with the body's hormonal systems; and

17 WHEREAS, these endocrine-disrupting chemicals are found in toys, plastic drinking bottles, cleaning
18 supplies, house dust, home furniture, electronics, building materials, fragrances, food, food packaging, personal
19 care products, and drinking water; and

20 WHEREAS, exposure to endocrine-disrupting chemicals may contribute to attention deficit hyperactivity
21 disorder, asthma, obesity, and early puberty in children; thyroid disorders, breast cancer, diabetes, obesity, and
22 infertility in women; and thyroid disorders, diabetes, obesity, infertility, prostate cancer, and low sperm count in
23 men; and

24 WHEREAS, PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES, OR PFAS, ARE A LARGE, COMPLEX
25 GROUP OF SYNTHETIC CHEMICALS THAT HAVE BEEN USED IN CONSUMER PRODUCTS AND MAY AFFECT HUMAN HEALTH;
26 AND

27 WHEREAS, PFAS ARE MOBILE, PERSISTENT, AND BIOACCUMULATIVE AND ARE NOT KNOWN TO DEGRADE IN
28 THE ENVIRONMENT; AND

1 WHEREAS, THE DEPARTMENT OF ENVIRONMENTAL QUALITY HAS PRELIMINARILY STUDIED PFAS AND NOTED
2 THE HEALTH RISKS ASSOCIATED WITH PFAS; AND

3 WHEREAS, STATEWIDE SOLUTIONS SHOULD BE EXPLORED IN MONTANA TO REDUCE OR ELIMINATE THE
4 POTENTIAL RISKS POSED BY PFAS TO HUMAN HEALTH AND THE ENVIRONMENT; AND

5 WHEREAS, declining birth rates and increasing life expectancy may create a "demographic time bomb"
6 as future generations struggle to meet the needs and obligations of an older population, thereby reducing
7 economic growth, decreasing tax revenue, and increasing health care costs; and

8 WHEREAS, declining sperm counts, diminished ovarian reserves, and increasing miscarriage rates
9 could eventually threaten survival of the human race; and

10 WHEREAS, as a modest first step to combat what could become a global calamity, the Montana
11 Legislature should examine the threats of these chemicals in our drinking water.

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13 NOW, THEREFORE, BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF
14 THE STATE OF MONTANA:

15 That the Legislative Council be requested to designate an appropriate interim committee or statutory
16 committee, pursuant to section 5-5-217, MCA, or direct sufficient staff resources to:

17 (1) review how existing state water quality laws and federal acts, including the Clean Water Act
18 and the Safe Drinking Water Act, protect water quality in Montana and regulate endocrine-disrupting chemicals;

19 (2) STUDY THE PRESENCE OF PFAS IN MONTANA, INCLUDING POTENTIAL SOURCES OF PFAS, SAMPLING
20 AND TESTING METHODS TO IDENTIFY THE PRESENCE OF PFAS, AND ROUTES OF HUMAN AND ECOLOGICAL EXPOSURE;

21 (2)(3) analyze research related to the health effects of endocrine-disrupting chemicals;

22 (3)(4) determine, if possible, the prevalence of endocrine-disrupting chemicals in Montana; and

23 (4)(5) offer recommendations for future study, rulemaking, or changes to law related to water quality,
24 PFAS, and endocrine-disrupting chemicals.

25 BE IT FURTHER RESOLVED, that if the study is assigned to staff, any findings or conclusions be
26 presented to and reviewed by an appropriate committee designated by the Legislative Council.

27 BE IT FURTHER RESOLVED, that all aspects of the study, including presentation and review
28 requirements, be concluded prior to September 15, 2026.

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